

TENTATIVE RULING: Both matters are CONTINUED to September 29, 2026, at 8:30 a.m. in Dept. A to permit Conservator to address the following item.

The Summary of Account indicates Disbursements in the amount of \$59,007.10, whereas Schedule C shows Disbursements in the amount of \$58,213.10. This discrepancy is not addressed through the Petition.

Petitioner may address this discrepancy either through an Amended Petition, or a Declaration, as appropriate. Any such document shall be served and filed on or before September 21, 2026.

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Estate of Richard Lane Wyant

26PR000002

PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNTING; FOR ALLOWANCE OF COMPENSATION FOR STATUTORY ATTORNEY FEES; AND FOR COSTS

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Rianna Mebane et al v. Jimmy Loy Moon et al

24CV001153

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY'S MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION AND INTERROGATORIES

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Federal Insurance Company (“Federal”) moves, pursuant to Code of Civil Procedure sections 2030.300 and 2031.310,¹ to compel Plaintiffs’ further responses, within 30 days, to Federal’s Special Interrogatories (Set One) Nos. 9-12 and 14-16; Form Interrogatories (Set One) Nos. 9.2, 12.3, 12.4, 12.6, and 50.3; Requests for Production (Set One) Nos. 1-7, 9-15, 17, 18, 22, 23-25, 27-29, 31-41, 43-47, 49, 50; and Requests for Production (Set Two) No. 47 propounded on Plaintiff Thomas Pollock and the corresponding requests propounded on Plaintiff Eileen Tabios.

The matter originally came on for hearing on August 11, 2026. The Court posted a Tentative Ruling the day before. There were no requests for oral argument and the Court adopted the Tentative Ruling on August 11 as the order of the Court. (See 8/11/206 Minute Order.) The August 11 Order continued the matter to September 1 and directed the parties as follows:

- 1) Federal shall submit a supplemental declaration to confirm the parties’ agreement to extend the deadline for Federal to move to compel responses to each set of discovery requests at issue. The supplemental declaration shall be served and filed no later than August 25, 2026.
- 2) The parties are ordered to engage in additional meet and confer efforts in light of the discussion below. Federal shall file a supplemental declaration stating facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion was made. The supplemental declaration shall be served and filed no later than August 25, 2026. The parties are further directed to file, not later than August 25, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel, in light of the parties’ meet and confer efforts.

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

- 3) The parties are also encouraged to meet and confer regarding the appointment of a discovery referee pursuant to Code of Civil Procedure, section 638. Upon any agreement, the parties may submit a stipulation and proposed order.

(8/11/26 Minute Order.)

On August 25, 2026, Federal filed a Supplemental Declaration and both parties filed Supplemental Separate Statements. The Supplemental Declaration of Brittany Fowler (“Fowler Suppl. Decl.”) confirms that the parties agreed to extend the deadline for Federal to move to compel responses to each set of discovery requests at issue. (Fowler Suppl. Decl., ¶¶ 2-15.) Moreover, the Fowler Suppl. Decl. and the parties’ Supplemental Separate Statements indicate that the parties were able to resolve all disputes, except with respect to RFP No. 24 (Tabios RFP No. 22), No. 41 (Tabios RFP No. 38) and No. 47 (Set Two).

Therefore, the Court’s ruling herein addresses only the three outstanding RFPs.

B. LEGAL STANDARD

A civil litigant’s right to discovery is broad. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (§ 2017.010; see *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].)

“Relevancy to the subject matter of the litigation is a much broader concept than relevancy to the precise issues presented by the pleadings. [Citation.] ‘The ‘subject matter of the action’ is the circumstances and facts out of which the cause of action arises; it is the property, contract, or other thing involved in the dispute; it is not the act or acts which constitute the cause of action, but describes physical facts in relation to which the suit is prosecuted.’ [Citation.] Information is ‘relevant to the subject matter’ if its discovery will tend to promote settlement [Citation] or assist the party in preparing for trial [Citation].” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1760.)

The discovery statutes vest trial courts with wide discretion to allow or prohibit discovery, so long as they do not use such discretion to defeat the liberal policies on which such statutes are founded. (See *Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1107.)

On receipt of a response to a document demand, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

C. DISCUSSION

1. RFP No. 24 (Pollock) / No. 22 (Tabios)

This RFP requests all documents and communications relating to Plaintiffs’ separation from Paul Hastings, including any separation agreement. (Fed. Suppl. Sep. Stmt. (“FSSS”), 2:19-20.) In response, Plaintiffs assert several objections, including on relevance grounds, stating “Plaintiff’s separation from Paul Hastings occurred prior to the June 5 Fire and does not form the basis for any claim of damages in the instant action.” (*Id.*, 3:3-14.)

It appears Plaintiffs have since agreed to produce the separation agreement and documents specifically referencing Pollock’s separation. (Fowler Suppl. Decl., ¶ 21; Pltfs’ Suppl. Sep. Stmt (“PSSS”), 5:12-19.) This apparent agreement is not reflected in Plaintiffs’ discovery response, but it certainly appears reasonable to the Court.

Federal contends that Plaintiffs’ production must include documents regarding Pollock’s job performance or ability to fulfill his professional obligations that relate to his separation from Paul Hastings, even if those documents do not specifically reference Pollock’s separation from the firm. (FSSS, 4:14-16.) Federal argues such documents are relevant because (1) Pollock’s separation from Paul Hastings occurred in 2023, just two years before Pollock’s separation from DLA Piper, (2) Plaintiffs are seeking lost income based on Pollock’s separation from DLA Piper in 2025, and (3) Federal needs employment records dating back to 2023, as comparison data, to test Plaintiffs’ claim that Pollock was unable to fulfill his professional obligations in 2025 due to conduct by Federal. Federal acknowledges that it has charts of Pollock’s hours worked dating back to 2017 at Paul Hastings, and that the charts show Pollock’s hours were low even before his employment at DLA Piper. Federal argues that the charts are insufficient because they do not provide any explanation of why Pollock’s hours were low, and the charts might not be admissible. In essence, Federal contends that, if Pollock has consistently been a poorly performing employee, that undermines Plaintiffs’ claim that Federal is at fault for Pollocks’ separation at DLA Piper.

Plaintiffs argue that Federal already has responsive documents in its possession from a third-party subpoena served on Paul Hastings. (PSSS, 3:13-15.) Plaintiffs contend that the only Paul Hastings’ document Federal references in support of its theory that Pollock’s separation from Paul Hastings was due to poor performance is Federal’s reference to his billable hours from 2017 and 2019 (seven and five years before his separation from Paul Hastings). Rather, Plaintiffs

contend that the discovery produced by Paul Hastings “shows the robust nature of Mr. Pollock’s hours at Paul Hastings prior to his separation from that firm.” (PSSS, 6:2-5, citing evidence.) Thus, Plaintiffs argue this RFP is an improper fishing expedition.

Plaintiffs further argue that “Federal’s own theory of relevance that documents may show a pre-existing pattern of low billable hours that ‘predate the fires at his property and his related insurance claims’—does not establish that Mr. Pollock’s Paul Hastings employment records are responsive to a request framed around his separation. RFP No. 24 is framed narrowly around the fact and circumstances of the Paul Hastings separation itself.” (PSSS, 4:1-5.) “That speculative theory of relevance does not convert every billable-hour and performance record from Mr. Pollock’s earlier employment into a document ‘relating to’ his separation, and it underscores precisely the guesswork Section 2031.030 is designed to prevent a responding party from having to undertake.” (*Id.*, 4:9-12.)

The Court agrees with the points advanced by Plaintiffs, and finds that Federal failed to show (1) that the documents it seeks are even necessarily responsive to the RFP as written, and (2) good cause for the documents sought (as phrased in its Supplemental Statement.)

The Motion as to RFP No. 24 (Pollock) / No. 22 (Tabios) is DENIED.

2. RFP No. 41 (Pollock) / No. 38 (Tabios)

This RFP requests all communications from January 1, 2025 to present, relating to Plaintiffs’ finances, including any communications with their financial advisors. (FSSS, 6:3-4.) In response, Plaintiffs asserted several objections and stated that they were willing to meet and confer to discuss appropriate limitations and protections. (*Id.*, 6:12-7:4.)

During the parties’ meet and confer, Federal agreed (i) that Plaintiffs need not re-collect and reproduce responsive documents previously produced in the Glass Fire litigation; (ii) to narrow this request to seek documents from 2018 to present; and (iii) to adopt Plaintiffs’ definition of “relating to.” (Fowler Suppl. Decl., ¶ 22; FSSS, 7:20-23.) Federal also offered to address Plaintiffs’ concern of the request being overbroad through search terms, and further offered to limit the request to communications with representatives of banks, lenders, accountants, financial advisors, financial institutions, or other entities with which Plaintiffs have deposited money, obtained a loan, invested, or considered investing. (Fowler Suppl. Decl., ¶ 22.)

Plaintiffs did not agreed to produce documents and maintain their objections.

Federal argues that the discovery is relevant “in view of Plaintiffs’ claims for damages based on the premature depletion of their savings and retirement accounts, purported lost income, and additional living expenses based on their claimed standard of living.” (Fowler Suppl. Decl., ¶ 22; FSSS, 7:6-17.) Federal argues that Plaintiffs’ bank statements and investment account statements are insufficient because they do not show *why* money was spent and accounts were purportedly depleted. It claims the reason for the movement of money is necessary to test Plaintiffs’ claim that Federal is to blame. (FSSS, 8:14-26.)

Plaintiffs show that their production efforts with respect to their finances have been extensive and are continuing. (PSSS, 8:8-27.) Plaintiffs argue that this catch-all request for finance-related *communications* is too overbroad, vague and ambiguous, forcing speculation on the part of Plaintiffs, to justify the further intrusion into Plaintiffs' privacy.

The Court agrees with Plaintiffs. The Court construes Federal's offer to use search terms to further narrow the request as an implicit concession that the request, as stated, is overbroad. Even Federal's theory for relevance—that it seeks the answer to why money moved—is overbroad, suggesting that this RFP is an improper fishing expedition. Certainly, Federal is not contending that every single movement of money from 2018 to the present is relevant; thus, Federal cannot reasonably argue that communications relating to Plaintiffs' finances from 2018 are relevant. It appears Federal has, in its possession, documents regarding Plaintiffs' finances, such that Federal can identify certain movements of money and direct a properly tailored discovery request.

Based on the foregoing, the motion as to RFP No. 41 (Pollock) / No. 38 (Tabios) is DENIED.

3. RFP (Set Two) No. 47

This RFP requests all September 27, 2020, to the present documents and communications relating to the sale, attempted sale, offer for sale, auction transfer, marketing, valuation, appraisal, payment, proceeds or other disposition of Plaintiffs' wine collection, or any portion thereof, including any documents and communications reflecting sale confirmations, invoices, receipts, account statements, wire confirmations, canceled checks, appraisals, valuations, inventories, condition reports, provenance records, advertisements, listings, or auction materials. (FSSS, 9:13-19.)

In response, Plaintiffs asserted several objections and stated that “following the entry of an appropriate Protective Order, to the extent Plaintiffs contend that any disposition of a portion of the wine collection is relevant to their alleged damages arising from Defendant's failure to pay benefits owed under the policy (including, for example, costs associated with storage), as a result of the June 5, 2024 Fire, Plaintiffs will produce for defendant's inspection and copying, at a time and location mutually convenient for Plaintiffs and Defendant Chubb, non-privileged documents sufficient to show the occurrence, timing, and general proceeds of any such disposition of Plaintiffs' wine collection from June 5, 2024 to the present.” (*Id.*, 10:20-27.)

Federal argues that the discovery is relevant because the sale of Plaintiffs' wine collection—the reported value of which was approximately \$1 million to \$1.5 million—bears directly on the condition of Plaintiffs' property following the Glass Fire, which condition Plaintiffs have put at issue by alleging that Federal failed to properly determine the amount of insurance for their property post-Glass Fire. (FSSS, 11:5-12:15, 13:2-4.) Plaintiffs maintain that *their own* representations about the condition of their property post-Glass Fire are irrelevant. Federal argues they are party admissions relevant to test the position Plaintiffs have taken in this litigation.

Federal acknowledges that it possesses an expert report regarding the valuation of Plaintiffs' wine collection prepared by a wine expert, Thatcher Baker-Briggs, served in February 2025, after the Glass Fire. However, Federal argues that the 2025 report is insufficient because Plaintiffs sold the collection in spring 2026. Moreover, Federal emphasizes that the report does not include Plaintiffs' representations regarding the condition of their property, which is specifically what it seeks.

Plaintiffs argue that the sale of the wine collection is not the subject of any claim in this litigation. (PSSS, 12:22-24.) With respect to Federal's need for Plaintiffs' state of mind or representations regarding the post-Glass Fire / pre-Crystal Fire condition of the property, Plaintiffs argue that the theory is entirely speculative and far too attenuated to establish relevance. Specifically, Defendant's speculation about what Plaintiffs may have represented to unidentified third parties concerning the condition of their wine—which was not stored in the Main Dwelling, and was not at the property for the Crystal Fire (and therefore no under/over-insurance claim exists as to it)—has no bearing on the Property's actual condition before the Crystal Fire.

As a starting point, the Court believes there is only a minimal showing of good cause for discovery regarding the value of Plaintiffs' wine collection. The extent of the relevance is that the wine value provides *some level* of insight into the effects of the Glass Fire on Plaintiffs' property, based on the claims asserted by Plaintiffs about Federal failing to properly value and insure their property after the Glass Fire. However, the relevance in the value of the *wine* is attenuated because that specific portion of the property is not directly subject to Plaintiffs' claim for over- or under-insurance.

The Court recognizes that the value of Plaintiffs' wine collection is not the subject of the current discovery dispute. Indeed, Federal already possesses an objective valuation of the wine collection—the 2025 report. The Court provides its reasoning as to the minimal good cause for the objective value of the wine collection to support its conclusion that there is no good cause for the discovery Federal seeks now—that is, *Plaintiffs' representations* of the wine collection value, which is a further step away from the already-attenuated value of the wine. The only relevance of Plaintiffs' representations that Federal has articulated is Federal's entitlement to prior party admissions contradicting their current position. However, Federal fails to cite any authority supporting such entitlement in discovery, nor does Federal explain how any such contradicting admissions undermine Plaintiffs' claim of over- or under-insuring the property *where an objective valuation already exists*.

Based on the foregoing, the motion as to RFP No. 47 is DENIED.

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Jose Antonio Ceballos Cruz v. Cakebread Cellars

25CV002628

DEFENDANT CAKEBREAD CELLARS' MOTION FOR MONETARY SANCTIONS,
JOINTLY AND SEVERALLY AGAISNT PLAINTIFF AND HIS COUNSEL OF RECORD
AND TERMINATING SANCTIONS, OR IN THE ALTERNATIVE, COMPLIANCE WITH
THIS COURT'S DISCOVERY ORDER